



CHAPTER ix.

An Act for conferring further powers upon the Derby Gas Light and Coke Company. A.D. 1908.
[18th June 1908.]

WHEREAS the Derby Gas Light and Coke Company (in this Act called "the Company") were incorporated by the Derby Gas Act 1852 (in this Act called "the Act of 1852") and further powers were conferred upon them by the Midland Railway (Derby Gas) Act 1867 the Derby Gas Act 1876 the Derby Gas Act 1890 the Derby Gas Act 1903 and the Derby Gas Act 1906 (which Acts with the Act of 1852 are in this Act called "the recited Acts" and each of the recited Acts is hereinafter referred to separately as the Act of the year in which the same was passed):

15 & 16 Vict.
c. xiv.
30 & 31 Vict.
c. xxvii.
39 & 40 Vict. c. v.
53 & 54 Vict. c. xx.
3 Edw. 7. c. clxvi.
6 Edw. 7. c. clxxiii.

And whereas the parishes and places of Milford Heage Coxbench Denby Kilbourne and Hilton all in the county of Derby are adjacent to the present limits of supply of the Company and the said parishes and places or some of them are not now adequately supplied with gas and it is expedient that the Company should be empowered to supply gas within those parishes or such parts thereof as are hereinafter referred to:

And whereas in the year one thousand eight hundred and fifty certain persons formed themselves into a company by the name of the Belper Gas and Coke Company (in this Act called "the Belper Company") for the purpose of making and supplying gas coke and other kindred materials to the town of Belper in the county of Derby and doing things incidental or conducive to the attainment of such objects:

And whereas the Belper Company have raised capital to the extent of six thousand pounds by the creation and issue of six hundred fully paid shares of ten pounds each and have also

A.D. 1908. — borrowed the sum of two thousand pounds upon debentures carrying interest at five pounds per centum per annum :

And whereas the urban district of Belper in the county of Derby is now supplied with gas partly from the works of the Belper Company and partly from certain private gasworks hereinafter referred to and belonging or reputed to belong to George Herbert Strutt :

And whereas the Belper Company have passed special resolutions for the voluntary winding up and distribution of their assets and have appointed liquidators for that purpose :

And whereas the said George Herbert Strutt is carrying on the business of making and supplying gas and residual products to and within certain parts of the urban district of Belper and the parishes of Milford and Holbrook from gasworks erected by him in the said urban district :

And whereas by an agreement dated the eleventh day of December one thousand nine hundred and seven and made between the Belper Company and their liquidators of the one part and the Company of the other part it has been agreed that the Company shall purchase the works lands property rights and other assets of the Belper Company upon the terms (inter alia) of the issue to the liquidators or their nominees of consolidated ordinary stock in the capital of the Company and it is expedient that the said agreement should subject as hereinafter provided be confirmed :

And whereas by an agreement dated the eleventh day of December one thousand nine hundred and seven and made between George Herbert Strutt of the one part and the Company of the other part it has been agreed that the Company shall purchase the business of the said George Herbert Strutt and the gasworks mains plant and machinery erected on land belonging or reputed to belong to him upon the terms (inter alia) of the issue to the said George Herbert Strutt of consolidated ordinary stock in the capital of the Company and it is expedient that the said agreement should be confirmed :

And whereas it is expedient that the Company be authorised to create and issue consolidated ordinary stock of the Company for the purposes of satisfying the provisions of the said agreements :

And whereas the said urban district of Belper and the parish of Holbrook are adjacent to the limits of supply of the Company

and it is expedient that the Company should be authorised to supply gas within the said urban district and parish in addition to the parishes and places hereinbefore mentioned: A.D. 1908.

And whereas it is expedient that the Company should be authorised to continue the existing gasworks of the Belper Company and upon the lands described in the Second Schedule to this Act to manufacture and store gas and the residual products arising in the manufacture of gas:

And whereas it is expedient that the provisions hereinafter contained should be made:

And whereas the objects aforesaid cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Derby Gas Act 1908 and the recited Acts and this Act may be cited together as the Derby Gas Acts 1852 to 1908. Short title.

2. The following Acts and Parts of Acts so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts (except the provisions thereof with respect to the purchase and taking of lands otherwise than by agreement):

The Gasworks Clauses Act 1847 as amended by the Gasworks Clauses Act 1871:

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say):—

The distribution of the capital of the Company into shares;

The transfer or transmission of shares;

The payment of subscriptions and the means of enforcing the payment of calls;

The forfeiture of shares for non-payment of calls;

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—

The remedies of creditors of the Company against the shareholders;

The borrowing of money by the Company on mortgage or bond;

The consolidation of the shares into stock;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

And Part I. (relating to cancellation and surrender of shares) and Part II. (relating to additional capital) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction:—

The “existing limits of supply” means the limits of supply of the Company as defined by the Act of 1852 the Act of 1903 and the Act of 1906;

The expression “limits of supply” means the existing limits of supply as extended by this Act.

Extension of limits of supply.

4.—(1) From and after the passing of this Act the existing limits of supply shall be extended so as to include the urban district of Belper and the following parishes and places in the county of Derby so far as the same are not now within the existing limits of supply (that is to say) Milford Holbrook Coxbench and Hilton and so much of the parishes of Kilbourne and Denby as lies to the west of the railway from Derby to Ripley of the Midland Railway Company and so much of the parish of Heage as lies to the south and east of a line shown by red colour on a plan signed in duplicate by Alfred Emmott the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which plan one copy is deposited in the Private Bill Office of the House of Commons and the other in the Office of the Clerk of the Parliaments.

(2) The Company shall have and may exercise within the limits of supply all and the like powers privileges and authorities for and in relation to the supply of gas and shall be subject

to all and the like duties liabilities and obligations in respect thereof as they now have and are subject to within the existing limits of supply. A.D. 1908.

5. In executing the works and exercising the powers as to the supply of gas conferred by this Act so far as they affect main roads and county or main road bridges of the county of Derby the following provisions for the protection of the county council of the administrative county of Derby (in this section called "the county council") shall (unless otherwise agreed) have effect (that is to say):—

For protection of Derbyshire County Council.

- (1) All pipes to be laid in or along any main road or in upon or across any county or main road bridge shall be laid in such position and if under the metalled portion thereof at such depth as the county council may reasonably require:
- (2) In the application of the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the notice required by the eighth section of that Act shall (except in cases of emergency) be not less than seven days instead of three days:
- (3) The plan required by the ninth section of the said Act shall be accompanied by a description of the proposed works in the case of any main road and by a section in the case of any county or main road bridge and shall be delivered to the county council or their surveyor by the Company not less than seven days before they commence to open or break up any main road or interfere with any county or main road bridge for the purpose of executing the works:
- (4) Nothing in this Act shall authorise the Company to interfere with the structural part of any county or main road bridge without the consent in writing of the county council which consent the county council are hereby authorised to give and such consent shall not be unreasonably withheld:
- (5) Nothing in this Act shall interfere with the right of the county council to alter the level of deviate or improve in any manner they think fit any main road in or along which any pipes of the Company shall have been laid and the Company shall on the expiration of fourteen

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days after receiving notice under the hand of the clerk of the county council so to do proceed to alter the position of any such pipes in the manner and to the extent prescribed by such notice or as in case of difference shall be determined by arbitration in the manner hereinafter prescribed and the expenses of any such alteration shall be paid to the Company by the county council :

- (6) Nothing in this Act shall interfere with the right of the county council at any time or times to remove alter or rebuild any county or main road bridge or the approaches thereto over near to or attached to which any pipes of the Company are carried in the same manner as they might have removed altered or rebuilt such bridge or the approaches thereto if this Act had not been passed and such pipes had not been laid over or near or attached to such bridge and in the event of any such bridge or the approaches thereto over or near or attached to which any such pipes are laid being removed altered or rebuilt as aforesaid the Company shall if required by the council alter at the cost of the Company the position of such pipes and any work by which the same are carried over or near or attached to such bridge or the approaches thereto as aforesaid Provided that the county council shall afford all reasonable facilities to the Company for such alteration Provided also that during the removal alteration or rebuilding of such bridge or the approaches thereto as aforesaid the county council shall at their own expense afford all reasonable facilities for temporarily carrying such pipes across the stream river or other place over which such bridge is carried so as not to interrupt the continual supply of gas or to diminish the pressure of such supply through such pipes :

- (7) All works of the Company executed under the powers of this Act so far as they affect any main roads and county or main road bridges shall be so executed by the Company as not to stop the traffic and so far as reasonably practicable as not in any way to impede or interfere with the traffic on any main road or over any county or main road bridge or the approaches thereto and the Company shall not open or break up

at any one time a greater length than one hundred yards of any such road : A.D. 1908.

- (8) The Company shall pay to the county council the reasonable costs which the county council may incur in the repair and reinstatement of so much of any main road or of the road over any county bridge or the approaches thereto in which the pipes of the Company are or may be laid as may be damaged by reason of the traffic being concentrated thereon during the laying alteration renewal or repair of the said pipes :
- (9) The powers of section 44 (Power to lay down and utilize pipes for ancillary purposes) of the Derby Gas Act 1903 shall not be exercised except with the consent of the road authority and subject to such terms and conditions as such authority may impose :
- (10) If any difference arises at any time between the county council and the Company touching this section or anything to be done or not to be done thereunder or the giving or withholding of any consent or the conditions of giving the same or any direction such difference shall be settled by an engineer to be agreed on between the county council and the Company and failing agreement to be appointed by the President of the Institution of Civil Engineers on the application of either party.

6. Any mains pipes or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway canal or works of any railway canal or other company shall (except in case of emergency) be laid down and executed and subsequently maintained and repaired by the Company under the direction and superintendence and to the reasonable satisfaction of the chief engineer of the said railway canal or other company in accordance with plans and sections previously submitted to and approved by him.

For protection of railway canal and other companies.

If any difference arises between the Company and any railway canal or other company whose lands or works the Company have power to cross under the authority of this Act as to the mode of laying down repairing or enlarging their mains or pipes or other works or the facilities to be afforded for the same such difference shall be settled by an engineer to be appointed by the Board of Trade at the request of either party.

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Confirmation
of agreement
with Belper
Company.

7. Subject to the provisions of this Act the agreement dated the eleventh day of December one thousand nine hundred and seven and made between the Belper Company and the liquidators of that company of the one part and the Company of the other part as set out in the First Part of the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively.

Confirmation
of agreement
with George
Herbert
Strutt.

8. The agreement dated the eleventh day of December one thousand nine hundred and seven and made between George Herbert Strutt of the one part and the Company of the other part as set out in the Second Part of the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto respectively.

Transfer of
property of
Belper Com-
pany.

9. As from the twenty-first day of October one thousand nine hundred and seven the business and the gasworks and works connected therewith and all lands buildings goods chattels moneys credits rights privileges authorities and all other property real and personal of the Belper Company shall be and as from the said date shall be deemed to have been transferred to and vested in the Company and may be and as from the said date shall be deemed to have been held used and enjoyed by the Company with and as part of the undertaking of the Company under the recited Acts and this Act.

Creation and
issue of
stock to give
effect to
agreement
for purchase
of Belper
Company.

10.—(1) The Company shall forthwith after the passing of this Act issue to the liquidators of the Belper Company for the benefit of the members of that company or their nominees and in discharge of the liability under Article 3 of the agreement set out in the First Part of the First Schedule to this Act consolidated ordinary stock as follows (that is to say):—

In exchange for each and every share held by a member of the Belper Company a sum of twenty pounds of the consolidated ordinary stock of the Company.

(2) The Company may (anything to the contrary contained in the recited Acts notwithstanding) apply to the purposes of this section any capital which under the recited Acts they may have created but not issued or which they are authorised to create and the Company may create and issue for the like purposes such an additional amount of consolidated ordinary stock as may be necessary to give effect to the provisions of the agreement set out in the First Part of the First Schedule to this Act including the paying off or redemption of the debentures

issued by the Belper Company and the payment of such of the other debts liabilities and obligations of that company in accordance with the provisions of Article 4 of the said agreement as are properly chargeable to capital account. A.D. 1908.

(3) All certificates of the shares of the Belper Company received by the Company in exchange for consolidated ordinary stock in the Company shall be cancelled.

(4) All persons in a fiduciary capacity who may in such capacity become entitled under the provisions of this section to any such consolidated ordinary stock shall stand possessed thereof upon the like trusts and subject and liable to the like powers provisions declarations agreements charges liens and incumbrances upon or to which the shares in exchange for which such consolidated ordinary stock is issued were immediately before the passing of this Act held or subject and every deed or other instrument and every will or testamentary disposition of or affecting or purporting to affect or deal with such shares shall take effect with reference to the whole or a proportionate part as the case may be of the consolidated ordinary stock substituted therefor.

11. The Company may (notwithstanding anything to the contrary in the recited Acts) create and issue as fully paid up to the said George Herbert Strutt or as he shall direct the sum of seven thousand five hundred pounds consolidated ordinary stock in conformity with the provisions of the agreement set out in the Second Part of the First Schedule to this Act and the Company may create and issue such an additional amount of consolidated ordinary stock as may be necessary to give effect to the provisions of this section. Payment for
Milford Gas-
works.

12. Subject to the provisions of this Act the Company may upon the lands described in the Second Schedule to this Act maintain erect alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas. Powers as
to construc-
tion and
maintenance
of gasworks
&c.

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Agreements
with Derby
Corporation
as to coal
conveyor.

13. The Company and the mayor aldermen and burgesses of the county borough of Derby may enter into and carry into effect agreements with respect to carrying a coal conveyor or other similar structure across Ford Street in the said county borough for the purpose of affording access between the existing works of the Company and the railways of the Great Northern Railway Company (Derbyshire and Staffordshire Lines) adjoining the said street.

Copy of Act
to be regis-
tered.

14. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Costs of Act.

15. All costs charges and expenses of and incident to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act.

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THE FIRST SCHEDULE.

THE FIRST PART.

AN AGREEMENT made the eleventh day of December one thousand nine hundred and seven between the BELPER GAS AND COKE COMPANY (hereinafter referred to as "the Belper Company") and JOSEPH PYM and JOHN FERGUSON BELL the liquidators thereof (hereinafter called "the liquidators") of the one part and the DERBY GAS LIGHT AND COKE COMPANY (hereinafter called "the Derby Company") of the other part.

Stamp.

Eleven
pounds fifteen
shillings.

WHEREAS by an agreement dated the thirtieth day of October one thousand nine hundred and seven and made between the Belper Company of the one part and the Derby Company of the other part for the consideration therein mentioned the Belper Company agreed to sell and the Derby Company agreed to purchase all and singular the real and personal estate and the undertaking business and goodwill of the Belper Company such agreement being conditional upon—

- (a) The passing of special resolutions for the voluntary winding-up of the Belper Company; and
- (b) The adoption by the liquidators or liquidator of that company of the now reciting agreement as an agreement to be carried into effect by them or him:

And whereas the Belper Company has duly passed special resolutions for the voluntary winding-up of that Company and the said Joseph Pym and John Ferguson Bell have been appointed the liquidators thereof and such resolutions have been registered with the Registrar of Joint Stock Companies and advertised in the London Gazette:

And whereas the said Joseph Pym and John Ferguson Bell as such liquidators of the Belper Company as aforesaid are desirous of adopting the conditional agreement hereinbefore mentioned and of entering into the agreement hereinafter contained:

Now it is hereby agreed and declared by and between the parties hereto as follows:—

1. The Belper Company and its liquidators shall transfer and the Derby Company shall take over all and singular the lands buildings

A.D. 1908. — works pipes and property goods chattels moneys credits debts bills notes and things in action of the Belper Company and the undertaking business and goodwill of the Company with the full benefit of all contracts and agreements and of all securities in respect of the said things in action to which the Belper Company is entitled and all other the real and personal property of the Belper Company whatsoever subject nevertheless as to all the said premises to any mortgages debts charges liens and incumbrances (if any) affecting the same or any part thereof.

2. The date as from which the transfer mentioned in the last clause hereof shall take effect shall be the twenty-first day of October one thousand nine hundred and seven.

3. As part of the consideration for the said transfer the Derby Company shall on the passing of the Act hereinafter referred to in exchange for the certificates for the shares in the Belper Company issue to the liquidators for the benefit of the members of the Belper Company or their nominees fourteen thousand six hundred pounds consolidated stock of the Derby Company ranking *pari passu* in all respects with the existing stock of the Derby Company which stock the liquidators shall divide between the members of the Belper Company according to their respective rights and interests therein.

4. As further part of the consideration for the said transfer the Derby Company shall pay satisfy and discharge all the debts liabilities and engagements of the Belper Company as existing on the twenty-first day of October one thousand nine hundred and seven and shall adopt perform and fulfil all contracts and engagements then binding on the Belper Company and shall at all times keep indemnified the said Company and its liquidators and contributories against all such debts liabilities obligations contracts and engagements and against all actions proceedings costs damages claims and demands in respect of the same.

5. As the residue of the consideration for the said transfer the Derby Company shall pay (or allow in account out of the assets of the Belper Company) to the liquidators of the Belper Company a sum equal to five pounds per cent. upon the total issued and paid up capital of the Belper Company which sum shall represent and shall be distributed to the members of the Belper Company as a half-yearly dividend upon the shares held by them respectively at the rate of ten pounds per cent. per annum up to the first day of January one thousand nine hundred and eight and for the half year ending the thirtieth day of June one thousand nine hundred and eight a dividend at the like rate shall be paid to the members of the Belper Company and the same dividend shall be paid each half year until the share certificates shall have been exchanged as mentioned in the next clause The Derby Company shall also pay or allow to the said liquidators out

of the assets as aforesaid for distribution amongst the members of the Belper Company the sum of six hundred pounds being a bonus of one pound per share.

6. If the liquidators shall in order to carry this agreement into effect have occasion to purchase the interest of any member of the Belper Company then and in every such case the amount of stock to be issued under clause 3 hereof shall be reduced proportionately to the nominal value of the shares so purchased and the Derby Company shall pay to the said liquidators in cash the amount necessary for effecting the purchase of such interest having regard to section 161 of the Companies Act 1862 as to dissentient shareholders.

7. For the purpose of determining the ad valorem duty payable in respect of the freehold property comprised in the sale the consideration for the freehold property belonging to the Belper Company shall be taken to be nine thousand seven hundred and fifty pounds.

8. The Belper Company shall make out a good holding title to the freehold property comprised in the said sale and shall furnish to the Derby Company within fourteen days from the date of these presents an abstract of such title. The title shall commence with the earliest document being a good root of title in the possession of the Belper Company. The Derby Company shall send its objections and requisitions in respect of the title within ten days of the delivery of the abstract of title and in this respect time shall be of the essence of the contract and in default of such objections and requisitions (if none) and subject to such (if any) the Derby Company shall be deemed to have accepted the title and if the Derby Company shall make and insist on any requisition or objection which the Belper Company shall be unable or unwilling on the ground of expense delay or otherwise to remove or comply with the Belper Company may by notice in writing to the Derby Company rescind this agreement.

9. The liquidators shall continue to carry on the business hereby agreed to be transferred for and on behalf of the Derby Company for such period expiring not later than the thirty-first day of December one thousand nine hundred and eight as the Derby Company shall by notice in writing require and at the conclusion of such period all accounts (if any) between the Belper Company and its liquidators and the Derby Company shall be duly adjusted.

10. The purchase hereby agreed to be made shall be completed within twenty-eight days after the Royal Assent shall have been given to the Bill to be promoted by the Derby Company in the next session of Parliament for giving effect to this agreement and for other purposes when the Belper Company and its liquidators shall execute and do at the expense of the Derby Company all such assurances acts and things

A.D. 1908. — as may reasonably be required by the Derby Company for vesting in it the property hereby agreed to be transferred and giving to it the full benefit of these presents.

11. All the stipulations hereinbefore contained save and except the provision as to payment of dividend and bonus under clause 5 hereof shall be considered as conditional upon some Act of Parliament incorporating the Gasworks Clauses Act 1847 and Acts amending the same authorising the Derby Company to purchase the said hereditaments and rights and confirming this agreement receiving the Royal Assent before the thirty-first day of December one thousand nine hundred and eight And this agreement is subject to such alterations as either House of Parliament may see fit to make herein and if any material alteration be so made either party shall be at liberty to withdraw from this agreement.

In witness whereof the Belper and the Derby Companies have hereunto affixed their respective common seals and the liquidators have hereunto set their hands and seals the day and year first before written.

The common seal of the Belper Company was hereunto affixed by the liquidators in the presence of—

JOSEPH PYM
J. FERGUSON BELL
Liquidators.

The Seal
of the Belper
Gas and Coke
Company.

HAROLD G. NIGHTINGALE
Clerk with Messrs. Moody and Woolley
Solicitors Derby.

Signed sealed and delivered by the said Joseph Pym and John Ferguson Bell in the presence of—

J. FERGUSON BELL
JOSEPH PYM.

L.S.

L.S.

HAROLD G. NIGHTINGALE.

The common seal of the Derby Company was hereunto affixed in the presence of—

GEO. GASCOYNE }
WM. WOOLLEY } Two Directors.

H. BULLIVANT Secretary.

Seal of the
Derby Gas
Light and Coke
Company.

THE SECOND PART.

A.D. 1908.

Stamp.

AN AGREEMENT made this eleventh day of December one thousand nine hundred and seven between GEORGE HERBERT STRUTT of Makeney in the county of Derby Esquire (hereinafter called "the vendor") of the one part and the DERBY GAS LIGHT AND COKE COMPANY (hereinafter called "the purchasers") of the other part.

Five
pounds ten
shillings.

WHEREAS the vendor has for many years past carried on business of making and manufacturing gas coke and other residual products and supplying gas for lighting and other purposes to part of the urban district of Belper in the said county of Derby and in the parishes of Milford and Holbrook in the same county :

And whereas the vendor in connection with such business has laid down mains and services partly under the public roads in and about the places aforesaid and partly under his own private property :

And whereas the purchasers are a company incorporated by Act of Parliament having statutory powers to supply gas to various places but not to Belper Milford or Holbrook aforesaid :

And whereas the vendor has agreed to sell and the purchasers have agreed to buy the gasworks of the vendor situate at Milford aforesaid and all pipes rights easements and appurtenances and the goodwill of his business connected therewith and it is intended that the purchasers shall apply to Parliament in the next session thereof for further powers to supply the urban district of Belper and other places or parishes with gas and to complete the purchase and transfer provided for by this agreement :

Now it is hereby agreed and declared by and between the parties hereto as follows :—

1. The vendor shall sell and the purchasers shall buy the works pipes property goods chattels things in action together with the undertaking business and goodwill of manufacturing and supplying gas as carried on by the vendor at Milford Belper and Holbrook aforesaid save and except any public lamps in any of the aforesaid places and the freehold premises situate at Milford aforesaid where the said business is carried on and also all moneys due or accruing due to the vendor for gas and residual products sold up to the thirty-first day of December next.

2. As consideration for the said sale the purchasers shall on the passing of the Act referred to issue to the vendor or his nominees seven thousand five hundred pounds consolidated stock of their company ranking *pari passu* in all respects with the existing stock of the purchasers and carrying dividend as from the first day of January one thousand nine hundred and eight.

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3. The purchasers shall take over and pay for (at a price to be settled by arbitration under the provisions of the Arbitration Act 1889 in case the parties differ) all coal purchased in the ordinary course of business loose plant and tools that may be upon the gasworks at Milford aforesaid on the thirty-first day of December next.

4. The vendor shall pay satisfy and discharge all his debts liabilities and engagements in connection with the said business up to the said thirty-first day of December next and shall also be entitled to all gas and meter rents up to that day. The vendor shall also retain the books of account used by him in connection with the said business but shall allow the purchasers every reasonable facility for copying or taking extracts from the same which they may require.

5. The vendor shall retain the freehold land on which the gasworks at Milford aforesaid are erected but he shall grant the purchasers a lease thereof for such period (not exceeding twenty-one years) as they may require at a rental of five shillings per annum determinable at any time on six months' notice. If the purchasers determine the said lease they shall be at liberty to remove all plant including retorts and retort settings and other personal property whether affixed to the freehold or not and dispose of or deal with the same as they may think fit.

6. The purchasers shall be entitled to retain all mains laid under the private property of the vendor or any other person's property in their present position and shall also be entitled to the benefit of any agreement or agreements which may have been entered into by the vendor with third parties in relation thereto and to a right of access at all times for the purpose of inspecting or repairing any such gas mains and the vendor shall be at liberty if it is practicable at his own expense to remove any such mains and lay the same in the nearest public highway but so that such removal is carried out in such a way as not to interfere with the business of supplying gas by the purchasers to their customers. If at any time hereafter the purchasers shall find it necessary to relay any mains now under the vendor's property or the property of any third parties as aforesaid they shall (if practicable) relay the same under the nearest or most convenient public highway under their statutory powers.

7. The purchase shall be completed within twenty-eight days after Royal Assent shall be given to the Bill to be promoted by the purchasers in the next session of Parliament for giving effect to this agreement and for other purposes when the vendor shall execute and do at the expense of the purchasers all assurances acts and things as may be reasonably required by the purchasers for vesting in them the property hereby agreed to be transferred and giving to them the full benefit of this agreement.

8. The purchasers shall take possession of the property and works hereby agreed to be purchased on the first day of January next. In the

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event of the proposed application to Parliament not being granted the vendor shall re-take possession of the said property and works and the purchasers shall account to him for all profits made less the reasonable expenses of management.

9. All the stipulations hereinbefore contained shall be considered as conditional upon some Act of Parliament incorporating the Gasworks Clauses Act 1847 and Acts amending the same authorising the purchasers to purchase the said property and works and confirming this agreement receiving the Royal Assent before the thirty-first day of December one thousand nine hundred and eight and this agreement is subject to such alterations as either House of Parliament may see fit to make herein and if any material alteration be so made either party shall be at liberty to withdraw from this agreement.

In witness whereof the vendor hath hereunto set his hand and seal and the purchasers have hereunto caused their common seal to be affixed the day and year first before written.

Signed sealed and delivered by the
before-named George Herbert } G. HERBERT STRUTT.
Strutt in the presence of—

L.S.

JOHN HUNTER
Private Secretary
Belper.

The common seal of the Derby Gas Light and
Coke Company was affixed hereto in the presence
of—

The Seal of
the Derby Gas
Light and Coke
Company.

GEO. GASCOYNE }
WM. WOOLLEY } Two Directors.

H. BULLIVANT Secretary.

THE SECOND SCHEDULE.

Lands for manufacture and storage of gas and the residual products arising from manufacture and storage of gas (that is to say):—

Certain lands being the site of the Belper Gasworks and the approach road and entrance thereto belonging or reputed to belong to the Belper Company containing by admeasurement 3,170 square yards or thereabouts situate in the parish of Belper in the county of Derby adjoining the western side of the main line of the Midland Railway Company from Derby to Manchester

A.D. 1908.
—

and comprising the enclosure numbered 948 on the $\frac{1}{2500}$ Ordnance map 2nd edition 1900 sheet No. XLV. 1 in the said parish :

Certain lands in the same parish adjoining the lands lastly described on the south side thereof extending along the said railway for a distance of about 120 yards and lying between that railway and the River Derwent and containing by admeasurement 1 acre or thereabouts :

Certain lands being the site of the Milford Gasworks belonging or reputed to belong to George Herbert Strutt and containing by admeasurement 1,893 square yards or thereabouts situate in the parish of Belper in the county of Derby abutting on the south-western side of the cut known as the mill lade and bounded on the east by a mill dam and on the south-west and north-west by lands belonging or reputed to belong to the said George Herbert Strutt and comprising the enclosure numbered 1,056 on the $\frac{1}{2500}$ Ordnance map of the said parish 2nd edition 1900 sheet No. XLV. 5.

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